
From: Robert Bolješić <Robert.Boljesic@gov.si>
Sent: 29 June 2021 12:14
To: Wagner, Maximilian (maximilian.wagner@uni-graz.at)
Cc: hannes.svardal@uantwerpen.be; Domen Trkov; Lovrenc Lipej
Subject: RE: Nagoya ERGA - Sequencing *Tripterygion tripteronotum*

Dear Mr Wagner,

Thank you for the message regarding regulatory measures for access to and transfer of genetic resources sampled in Slovenia and apologies for delayed reply due to absence.

The Republic of Slovenia is not a party to Nagoya Protocol, and therefore nor "prior informed consent (PIC)" or "mutually agreed terms (MAT)" as specified under the Protocol are required. Nevertheless, as a EU Member State, Slovenia implements the second pillar of Nagoya Protocol relating to the obligations of users of genetic resources through Regulation (EU) No. 511/2014. A piece of national ABS legislation has also been adopted to support the implementation of the EU Regulation. According to Art 4 (1) of the said Regulation, users of genetic resources shall exercise due diligence to ascertain that genetic resources which they utilise have been accessed in accordance with applicable access and benefit-sharing legislation or regulatory requirements, and that benefits are fairly and equitably shared upon mutually agreed terms.

In Slovenia, any access to genetic resources of species of endangered, rare or endemic wild fauna and flora (this includes all kinds of specimens, their parts etc.) is regulated and permit is required (for the list of protected animal species see Annex 1 at: <http://www.pisrs.si/Pis.web/pregledPredpisa?id=URED2386>). In cases when an intervention into nature may pose a threat to biodiversity (including genetic material) an access permit may also be required.

Since your intended activity on species *Tripterygion tripteronotum* does not fall into any of these categories it is currently not subject to regulatory measures. Therefore, with this message you exercised due diligence in accordance with Art 4 (1) of the Regulation (EU) No. 511/2014.

Best regards,

Robert Bolješić, NP NFP



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